

The Wild Life (Transactions And Taxidermy) Rules, 1973

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Union of India - Act

The Wild Life (Transactions And Taxidermy) Rules, 1973

UNION OF INDIA

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The Wild Life (Transactions And Taxidermy) Rules, 1973

Rule THE-WILD-LIFE-TRANSACTIONS-AND-TAXIDERMY-RULES-1973 of 1973

Published on 9 April 1973

Commenced on 9 April 1973

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The Wild Life (Transactions And Taxidermy) Rules, 1973

Published vide Notification G.S.R. 198(E), dated 9.4.1973, published in the Gazette of India, Extraordinary, Part 2, Section 3(i), dated 9.4.1973.

1074.

In exercise of the powers conferred by clause (b) of sub-section (1) of section 63 of the Wild Life (Protection) Act, 1972 (53 of 1972

), the Central Government hereby makes the following rules, namely:-

1.

Short title, extent and commencement .-(1) These rules may be called The Wild Life (Transactions and Taxidermy) Rules, 1973.

(2)

They extend to the whole of the State of Bihar, Gujarat, Haryana, Himachal Pradesh, Madhya Pradesh and Uttar Pradesh.

(3)

They shall come into force on the 9th April, 1973.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Wild Life (Protection) Act, 1972 (53 of 1972

);

(b)

"Form" means a Form appended to these rules;

(c)

"Licensee" means a licensee under Chapter V of the Act;

(d)

"Officer" means the Chief Wild Life Warden or any other officer which the State Government may, for the purposes of these rules, by notification in the Official Gazette, appoint;

(e)

"specified animal" means any animal which is specified in Schedule I, or Part II of Schedule II, to the Act and which is-

(i)

captured or kept or bred in captivity, or

(ii)

found wild in nature.

3.

Acquiring, receiving or keeping specified animal, etc. in control, custody or possession or put under process of taxidermy or make articles, etc .-(1) No licensee shall-

(i)

acquire, receive, keep in his control, custody, or possession, any specified animal or any animal articles, trophy, uncured trophy or meat derived therefrom, or

(ii)

put under a process of taxidermy or make animal article containing part or whole of such animal, except with the previous permission of the Officer.

(2)

Every application for such permission shall be made in Form I.

(3)

On receipt of an application made under sub-rule (2), the Officer may, after making such inquiry as he may think fit and within a period of fifteen days from the date of receipt of the application, either grant or refuse to grant the permission:

Provided that no such permission shall be granted unless the Officer is satisfied that the specified animal or animal article, trophy, uncured trophy or meat, referred to in sub-rule (1) has been lawfully acquired.

(4)

Where the Officer refuses to grant the permission, he shall record the reasons for so doing and a copy of the reasons so recorded shall be communicated to the licensee applying for the permission.

(5)

Every permission granted under sub-rule (3) shall be in Form II.

4.

Submission of report of stocks .-(1) Every licensee to whom permission has been granted under sub-rule (3) of rule 3 shall submit, to the Officer who had granted the said permission, report regarding the stocks of specified animal or animal article, trophy, uncured trophy or meat, referred to in sub-rule (1) of rule 3, in Form III within a period of [thirty days] of the acquisition, receipt or keeping of the same in his control, custody or possession.

(2)

The Officer, after receiving such report may arrange to affix identification marks on such stocks.

5.

Sale of specified animal, etc .-(1) No licensed dealer shall sell or offer for sale any specified animal or any animal article, trophy, or uncured trophy derived therefrom, except to a person authorised to purchase by a permission granted by the Officer and where the sale is effected the purchaser shall surrender the permission to the licensed dealer.

(2)

Every application for permission to purchase shall be made in Form IV.

(3)

On receipt of an application made under sub-rule (2), the Officer may, after making such inquiry as he may think fit, and within a period of ten days from the date of receipt of the application, either grant or refuse to grant the permission.

(4)

Where the Officer refuses to grant the permission, he shall record the reasons for so doing and a copy of the reasons so recorded shall be communicated to the person applying for the permission.

(5)

Every permission granted under sub-rule (3) shall be in Form V.

(6)

Every permission granted under sub-rule (3) shall be valid up to a period of one month from the date of issue of the same.

(7)

Every licensed dealer, at the time of each sale, issue a voucher in relation to the specified animal or animal article, trophy, or uncured trophy referred to in sub-rule (1), to the person authorised to purchase.

(8)

Each voucher shall contain the following particulars, namely:-

(a)

date of issue of voucher;

(b)

the amount or price realised or to be realised;

(c)

name and address of the licensed dealer issuing the voucher;

(d)

name and address of the person to whom the voucher is issued;

(e)

permission number of the person authorised to purchase;

(f)

description of the specified animal/animal article/trophy/uncured trophy derived therefrom and number;

(g)

whether such specified animal/animal article/trophy/uncured trophy was/were required to be declared under section 44 of the Wild Life (Protection) Act, 1972 (53 of 1972

), and if so, whether it/they has/have been declared;

(h)

signature of the licensed dealer issuing the voucher;

(i)

signature of the person to whom the voucher is issued.

6.

Taxidermy or making animal article .-(1) Every licensed taxidermist or licensed manufacturer shall, at the time of returning the trophy or animal article, issue a voucher to the owner of the said trophy or animal article.

(2)

Each voucher shall contain the following particulars, namely:-

(a)

date of issue of voucher;

(b)

charges realised or to be realised;

(c)

name and address of the licensed taxidermist/manufacturee issuing the voucher;

(d)

name and address of the person to whom the voucher is issued;

(e)

description of the trophy/animal article and number;

(f)

whether uncured trophy/trophy/animal article was required to be declared under section 40 or section 44, of the Wild Life (Protection) Act, 1972 (

53 of 1972

), and if so, whether it/they has/have been declared;

(g)

signature of the licensed taxidermist/manufacturee issuing the voucher.

7.

Maintenance of vouchers .-(1) The voucher referred to in rule 5 or rule 6 shall be in triplicate and serially numbered.

(2)

The duplicate and the triplicate copy of the voucher shall be retained by the licensed dealer, licensed taxidermist or licensed manufacturee and the original copy of the voucher shall be given to the person referred to in sub-rule (7) of rule 5 or sub-rule (1) of rule 6.

(3)

Every book containing blank vouchers shall be presented to the Officer for affixing his initials or stamps on such book before it is brought into use.

(4)

(a)

Every licensed dealer, licensed taxidermist, or licensed manufacturee shall send in monthly batches not later than the seventh day of every month, the duplicate copies of vouchers retained by him, to the Officer.

(b)

Every permission surrendered to a licensed dealer at the time of sale shall also be enclosed along with the duplicate copies aforesaid.

8.

Transport of specified animal, etc .-(1) No licensee shall transport from one place to another within the State any specified animal, animal article, trophy or uncured trophy derived therefrom, except with the previous permission of the Officer.

(2)

Every application for such permission shall be made in Form VI.

(3)

On receipt of an application made under sub-rule (2), the Officer may, after making such inquiry as he may think fit, and within a period of seven days from the date of receipt of the application, either grant or refuse to grant the permissions: Provided that no such permission shall be granted unless the Officer is satisfied that the specified animal or animal article, trophy or uncured trophy referred to in sub-rule (1), has been lawfully acquired.

(4)

Where the Officer refuses to grant the permission, he shall record the reasons for so doing and a copy of the reason so recorded shall be communicated to the licensee applying for the permission.

(5)

Every permission granted under sub-rule (3) shall be in Form VII.

9.

Appeal .-(1) Any licensee or a person aggrieved by an order made by the Chief Wild Life Warden or any other officer granting the permission under sub-rule (3) of rule 3, sub-rule (3) of rule 5 or sub-rule (3) of rule 8, may prefer an appeal,-

(i)

if the order is made by an officer other than the Chief Wild Life Warden, to the Chief Wild Life Warden; or

(ii)

if the order is made by the Chief Wild Life Warden, to the State Government.

(2)

In the case of an order passed in appeal by the Chief Wild Life Warden under clause (i) of sub-rule (1), a second appeal shall lie to the State Government.

(3)

No appeal shall be entertained unless it is preferred within fifteen days from the date of the communication to the applicant of the order appealed against:

Provided that the appellate authority may admit any appeal after the expiry of the period aforesaid, if it is satisfied that the appellant had sufficient cause for not preferring the appeal in time.

FORM I

(See

sub-rule (2) of Rule 3)

Application

for permission to acquire, receive, keep specified animal, animal, article, etc. or put under process of taxidermy or make animal article

To,

The _____

Sir,

I

. resident of

.....

. Taluk

. District

. and holding License No.

. granted under Section 44 (4) of the Wildlife

(Protection)

Act of 1972 (53 of 1972), request that I may be granted permission to acquire/receive/ keep in any control/custody/possession specified animal/animal article/trophy/uncured trophy/meat derived from specified animal and /or put under process of taxidermy/make animal article containing part/whole of such animal.

2. I furnish below the particulars in relation to such specified animal /animal article/trophy /uncured trophy/meat:

(1)

Species of animal

(2)

Number

(3)

Description (including sex, if possible)

(4)

Source from which to be obtained

(i)

Address and Licence No. if any

(ii)

Whether declaration made

/permission /licence obtained under Sections 40, 43 or 44 of the Wildlife
(Protection)

Act, 1972, and if so the particulars :

(5)

Particulars of
certificate of ownership

(6)

Identification mark, if
any

(7)

Premises in
which-intended to be kept

(8)

Purpose for which to be
acquired / received/ kept in control/ custody / possession:

(9)

If to be put under
process of taxidermy or to make animal article,

(a)

No. of trophies /articles
to be made

(b)

Description of such
trophies / articles

(c)

To whom will they be
returned

(d)

Probable date by which
they will be returned.

3. I hereby declare that to
the best of my knowledge and belief the information furnished herein is true
and complete.

..

..

Signature
of the applicant

FORM II

(See
sub-rule (2) of Rule 5)

Possession
to acquire, receive, keep in control custody,
or
permission specified animal, animal article, etc.
or
put under process of taxidermy or make animal article.

Shri

. holding Licence No.

. granted under Section 44(4) of the Wildlife
(Protection)

Act 1972 (

53 of 1972

) is hereby permitted to acquire/ to keep
under his control / custody / possession specified animal / animal article /
trophy / uncured trophy /meat derived from specified animal of the following
description, or put under process of taxidermy or make animal article
containing part or whole of such animal:

(1)

Species of animal

(2)

Description (including
sex, if given in the application)

(3)

Number

(4)

Source from which to be
obtained.

(5)

Licence/ Permission No. of the source from which to be obtained

(6)

Particulars of the Certificate of Ownership

(7)

Identification mark, if
any

(8)

Premises in which intended
to be kept

(9)

Purpose for which
permitted to be acquired /received /kept in control custody/possession:

(10)

If permitted to put
under process of taxidermy or to make animal article:

(a)

No. of trophies /articles
to be made

(b)

Description of such
trophies /articles

(c)

To whom they should be
returned

(d)

Probable date by which
they would be returned

Issued by me this
day of

.

Signature

& Designation

Seal :

Place :

Date :

FORM III

(See-rule

of (1) of Rule 4)

Report

of Stocks

To,

The _____

1. Full name, address, and Licence No. of the Licensee

2. Stock held on the date of
report in specified animals;

(a)

Species and sex

(b)

Number

(c)

Adult or juvenile

(d)

Premises where kept

3. Stock held on the date of
report in animal articles

(a)

Description, including

species of animal from which derived

(b)

Number

(c)

Dimension or weight

(d)

Premises where kept

4. Stock held on the date of
report in trophies:

(a)

Description, including

species of animal from which derived

(b)

Number

(c)

Dimension or weight

(d)

Premises where kept

5. Stock held on the date of
report in uncured trophies

(a)

Description, including

species of animal from which derived

(b)

Number

(c)

Dimension or weight

(d)

Premises where kept

6. Remarks, if any

I do hereby declare that the
information given above is true to the best of my knowledge and belief

Signature

of the person making declaration

Place :

Date:

FORM IV

(See Sub-rule (2) of rule 5)

Application

for permission to purchase specified animal, etc.,

To

The _____

Sir,

I/We, residing at

.....

. Taluk

. District

. request that I/we

may be granted permission to purchase specified animal/animal article /
trophy/uncured trophy derived from specified animal of the following
description, from a Licence:

(1)

Number and description of

(a)

specified animal

(b)

animal article

(c)

trophy

(d)

uncured trophy

(2)

Purpose for which the
purchase is to be made

(3)

I/We hereby declare that
to the best of my/our knowledge and belief the information furnished herein is
true and complete.

Signature

(s)

of the applicant (s)

Place :

Date:

FORM V

(See Sub-rule (5) of rule 5)

Permission

to purchase specified animal etc.

S / Shri

.

.....

.

. is/are hereby permitted to purchase specified
animal/animal article/ trophy/uncured trophy derived from specified animal of
the following description, from

. for the purpose of

Number and description of

(a)

specified animal

(b)

animal article

(c)

trophy

(d)

uncured trophy

Issued by me this

.....

. Day of

.

Signature

Designation

Seal :

Place :

Date :

Note : This permission shall be valid up to a
period of one month from the date of issue.

FORM VI

(See

sub-rule (2) of Rule 8)

Application

for permission to transport specified animal etc.

To

The _____

Sir,

I,

. residing at

.....

. I Taluk

. District

. holding Licence No

. granted under Section 44(4) of the Wildlife (Protection) Act,
1972.

(53 of 1972), request that I may be granted permission to transport the
following;

(1)

Species of specified
animal or from which the animal article/cured trophy/uncured trophy is derived

(2)

Number

(3)

Description (including
sex if possible) _____

(4)

Identification mark, if
any _____

(5)

Source of procurement and
the Licence / Permission No. _____

(6)

Certificate of ownership, if any _____

(7)

Mode of transport

(8)

Route _____

(9)

Period required for
transport _____

(10)

Destination

2. I hereby declare that to
the best of my knowledge and belief the information furnished herein is true
and complete

Signature
of the Applicant

Place

Date:

FORM VII

(See
sub-rule (5) of Rule 8)

Permission
to transport specified animal etc.

Shri

. holding Licence No

. granted under Section 44(4) of the Wildlife (Protection)
Act, 1972 (

53 of 1972

), is hereby permitted to transport in the manner
prescribed below specified animal/animal article/cured trophy/uncured trophy
derived from specified animal, from

. to

.

(i)

Mode of transport

(ii)

Route

(iii)

Period allowed for
transport

(iv)

Remarks

Issued by me this
. day of

.

Signature

Designation

Seal:

Place :

Date :

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